



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1315: public schools; interoperable communications; requirements

GRESS FLOOR AMENDMENT

1. Subjects a school district or charter school to the interoperable communications capabilities requirements if the school district or charter school receives monies from the state or a local law enforcement agency (LEA) for interoperable communications, rather than if there are sufficient monies available.
2. Deletes the requirement for each school district and charter school to submit to the Arizona Department of Education an affidavit attesting that the school district or charter school has not established interoperable communications requirements because sufficient monies are not available.
3. Requires an LEA, if the LEA has monies available to establish and maintain interoperable communications capabilities with school districts and charter schools within its jurisdiction, to offer to provide monies to the school district or charter school.
4. Requires an LEA, if the LEA does not have sufficient monies available to establish and maintain interoperable communications capabilities with each school district and charter school within its jurisdiction, to:
 - a. offer to provide to each selected school district or charter school monies for the interoperable communications capabilities requirements; and
 - b. if a school district or charter school declines an offer for monies, select another school district or charter school within the LEA's jurisdiction and for which sufficient monies are available to establish and maintain the interoperable communications capabilities.

ADDITIONAL COW
GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1315
(Reference to House engrossed Senate bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 1, article 5, Arizona Revised
3 Statutes, is amended by adding section 15-154.03, to read:

4 15-154.03. Schools; interoperable communications systems;
5 affidavits; annual readiness report; law
6 enforcement agencies; funding

7 A. IF ~~[SUFFICIENT MONIES ARE AVAILABLE, EACH]~~ [A] SCHOOL DISTRICT
8 ~~[AND]~~ [OR] CHARTER SCHOOL IN THIS STATE ~~[RECEIVES MONIES FROM THIS STATE~~
9 ~~OR A LOCAL LAW ENFORCEMENT AGENCY IN THIS STATE FOR INTEROPERABLE~~
10 ~~COMMUNICATIONS, THE SCHOOL DISTRICT OR CHARTER SCHOOL]~~ SHALL SELECT OR
11 DEVELOP TECHNOLOGY, A SYSTEM OR A METHOD TO ESTABLISH AND MAINTAIN
12 INTEROPERABLE COMMUNICATIONS CAPABILITIES THAT INCLUDE AT LEAST THE
13 FOLLOWING:

14 1. A MECHANISM THAT ENABLES DESIGNATED SCHOOL PERSONNEL TO NOTIFY
15 LOCAL LAW ENFORCEMENT AGENCIES IN REAL TIME IF AN EMERGENCY OCCURS AT THE
16 SCHOOL.

17 2. A MECHANISM THAT ENABLES THE SCHOOL DISTRICT OR CHARTER SCHOOL
18 TO SECURELY TRANSMIT THE CURRENT MAP OF EACH SCHOOL CAMPUS AND FLOOR PLAN
19 OF EACH SCHOOL BUILDING TO LOCAL LAW ENFORCEMENT AGENCIES IN A PRINTABLE
20 FORMAT.

21 3. A MECHANISM THAT ENABLES DESIGNATED SCHOOL PERSONNEL TO
22 COMMUNICATE WITH LOCAL LAW ENFORCEMENT AGENCIES AND LAW ENFORCEMENT
23 OFFICERS IN REAL TIME DURING AN EMERGENCY AT THE SCHOOL.

24 ~~[B. A SCHOOL DISTRICT OR CHARTER SCHOOL THAT USES A SECURE,~~
25 ~~MULTIMEDIA DATA COMMUNICATIONS SYSTEM THAT IS DEPLOYED PURSUANT TO SECTION~~
26 ~~41-1733 IS NOT REQUIRED TO ESTABLISH A NEW INTEROPERABLE COMMUNICATIONS~~

1 ~~SYSTEM IF THE EXISTING MULTIMEDIA DATA COMMUNICATIONS SYSTEM SATISFIES THE~~
2 ~~REQUIREMENTS PRESCRIBED BY SUBSECTION A OF THIS SECTION.]~~

3 ~~[C.]~~ [B.] ON OR BEFORE JULY 1, 2027 AND JULY 1 OF EACH YEAR
4 THEREAFTER, EACH SCHOOL DISTRICT AND CHARTER SCHOOL [THAT ESTABLISHES AND
5 MAINTAINS INTEROPERABLE COMMUNICATIONS CAPABILITIES] SHALL SUBMIT TO THE
6 DEPARTMENT, IN A FORM AND MANNER PRESCRIBED BY THE DEPARTMENT, AN
7 AFFIDAVIT ATTESTING THAT ~~[EITHER:~~

8 ~~1.]~~ THE SCHOOL DISTRICT OR CHARTER SCHOOL:

9 ~~[(a)]~~ [1.] IS MAINTAINING THE INTEROPERABLE COMMUNICATIONS
10 CAPABILITIES REQUIRED BY SUBSECTION A OF THIS SECTION.

11 ~~[(b)]~~ [2.] HAS TRANSMITTED THE CURRENT MAPS AND FLOOR PLANS TO
12 LOCAL LAW ENFORCEMENT AGENCIES THROUGH THE MECHANISM REQUIRED BY
13 SUBSECTION A, PARAGRAPH 2 OF THIS SECTION.

14 ~~[(c)]~~ [3.] HAS TESTED EACH MECHANISM REQUIRED BY SUBSECTION A OF
15 THIS SECTION TO ENSURE THAT THE SCHOOL DISTRICT OR CHARTER SCHOOL IS ABLE
16 TO COMMUNICATE WITH THE LOCAL LAW ENFORCEMENT AGENCY IN WHOSE JURISDICTION
17 THE SCHOOL DISTRICT OR CHARTER SCHOOL IS LOCATED AT LEAST ONCE DURING THE
18 PRECEDING YEAR.

19 ~~[2. THE SCHOOL DISTRICT OR CHARTER SCHOOL HAS NOT ESTABLISHED~~
20 ~~INTEROPERABLE COMMUNICATIONS CAPABILITIES REQUIRED BY SUBSECTION A OF THIS~~
21 ~~SECTION BECAUSE SUFFICIENT MONIES ARE NOT AVAILABLE.]~~

22 ~~[D.]~~ [C.] THE DEPARTMENT SHALL DEVELOP GUIDELINES AND BEST
23 PRACTICES TO ASSIST SCHOOL DISTRICTS AND CHARTER SCHOOLS IN MEETING THE
24 REQUIREMENTS PRESCRIBED BY THIS SECTION.

25 ~~[E.]~~ [D.] THE DEPARTMENT SHALL COMPILE THE AFFIDAVITS SUBMITTED
26 PURSUANT TO SUBSECTION ~~[C]~~ [B] OF THIS SECTION AND SHALL PROVIDE AN ANNUAL
27 STATEWIDE INTEROPERABILITY READINESS REPORT TO THE GOVERNOR, THE PRESIDENT
28 OF THE SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND SHALL
29 PROVIDE A COPY OF THE REPORT TO THE SECRETARY OF STATE.

30 ~~[F.]~~ [E.] IF A LOCAL LAW ENFORCEMENT AGENCY IN THIS STATE HAS
31 MONIES AVAILABLE TO ESTABLISH AND MAINTAIN INTEROPERABLE COMMUNICATIONS
32 CAPABILITIES WITH SCHOOL DISTRICTS AND CHARTER SCHOOLS THAT ARE LOCATED
33 WITHIN THE AGENCY'S JURISDICTION, THE AGENCY SHALL NOTIFY EACH SCHOOL
34 DISTRICT AND CHARTER SCHOOL THAT IS LOCATED WITHIN THE AGENCY'S
35 JURISDICTION ~~[THAT MONIES ARE AVAILABLE]~~ [AND OFFER TO PROVIDE MONIES TO
36 THE SCHOOL DISTRICT OR CHARTER SCHOOL] FOR THE PURPOSES OF SUBSECTION A OF
37 THIS SECTION.

38 ~~[G.]~~ [F.] IF A LOCAL LAW ENFORCEMENT AGENCY IN THIS STATE DOES NOT
39 HAVE SUFFICIENT MONIES AVAILABLE TO ESTABLISH AND MAINTAIN INTEROPERABLE
40 COMMUNICATIONS CAPABILITIES WITH EACH SCHOOL DISTRICT AND CHARTER SCHOOL
41 THAT IS LOCATED WITHIN THE AGENCY'S JURISDICTION, THE AGENCY SHALL DO
42 ~~[BOTH]~~ [ALL] OF THE FOLLOWING:

43 1. SELECT SCHOOL DISTRICTS AND CHARTER SCHOOLS FOR WHICH SUFFICIENT
44 MONIES ARE AVAILABLE TO ESTABLISH AND MAINTAIN INTEROPERABLE
45 COMMUNICATIONS CAPABILITIES.

46 2. NOTIFY EACH SCHOOL DISTRICT AND CHARTER SCHOOL THAT IS SELECTED
47 PURSUANT TO PARAGRAPH 1 [OR 3] OF THIS SUBSECTION THAT ~~[SUFFICIENT MONIES~~

1 ~~ARE AVAILABLE]~~ [THE SCHOOL DISTRICT OR CHARTER SCHOOL HAS BEEN SELECTED
2 AND OFFER TO PROVIDE MONIES TO THE SCHOOL DISTRICT OR CHARTER SCHOOL] FOR
3 THE PURPOSES OF SUBSECTION A OF THIS SECTION.

4 [3. IF A SCHOOL DISTRICT OR CHARTER SCHOOL DECLINES AN OFFER THAT
5 IS MADE PURSUANT TO PARAGRAPH 2 OF THIS SUBSECTION, SELECT ANOTHER SCHOOL
6 DISTRICT OR CHARTER SCHOOL THAT IS LOCATED WITHIN THE AGENCY'S
7 JURISDICTION AND FOR WHICH SUFFICIENT MONIES ARE AVAILABLE TO ESTABLISH
8 AND MAINTAIN INTEROPERABLE COMMUNICATIONS CAPABILITIES.]

9 Enroll and engross to conform
10 Amend title to conform

MATT GRESS

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